



CHAPTER 26.

An Act to provide for the continuation of certain Defence Regulations during a limited period notwithstanding the expiry of the Emergency Powers (Defence) Acts, 1939 to 1945, and for the extension and amendment of certain enactments the duration or operation of which depends on the duration of the said Acts or of the war ; for the permanent enactment of provisions contained in certain Defence Regulations ; for establishing the ownership of the Crown of goods requisitioned under emergency powers ; for empowering local authorities to remove war works and restore land ; for the repeal of certain emergency enactments ; and for purposes connected with the matters aforesaid.

[14th February 1946.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

PART I.

TEMPORARY CONTINUATION OF EMERGENCY LAWS.

1.—(1) The Defence Regulations mentioned in Parts I and II of the First Schedule to this Act shall, notwithstanding the expiry of the Emergency Powers (Defence) Acts, 1939 to 1945, continue in force until the thirty-first day of December, nineteen hundred and forty-seven, and shall then expire, and the said Regulations shall have effect, as from the date on which the said Acts expire, subject to such exceptions, limitations and modifications as are specified in the third column of the said Part I and the second column of the said Part II :

Continuation
for a limited
period of
certain
Defence
Regulations.

PART I.
—cont.

Provided that His Majesty may at any time by Order in Council revoke any such Defence Regulation either in whole or in part.

(2) Where a Defence Regulation is continued in force by this section, subject to an exception, limitation or modification, any order or other instrument made under the Regulation and in force when the Emergency Powers (Defence) Acts, 1939 to 1945, expire, shall continue in force and shall have effect as if it had been made under the Regulation as continued in force by this section.

52 & 53 Vict.
c. 63.

(3) Subsection (2) of section thirty-eight of the Interpretation Act, 1889, shall apply upon the expiry of any Defence Regulation continued in force by this section, as if the Regulation were an Act of Parliament and had then been repealed.

(4) Without prejudice to the last foregoing subsection, the saving provisions contained in Part III of the First Schedule to this Act shall have effect upon the expiry of the Defence Regulations therein mentioned.

(5) The references in subsection (1) of this section to the Defence Regulations therein referred to shall be construed as references to those Regulations as in force at the passing of this Act.

Extension
of Rent of
Furnished
Houses
Control
(Scotland)
Act, 1943.
6 & 7 Geo. 6.
c. 44.
2 & 3 Geo. 6.
c. 62.

2. In subsection (2) of section ten of the Rent of Furnished Houses Control (Scotland) Act, 1943 (which provides that that Act shall continue in force until the expiry of six months from the date when the Emergency Powers (Defence) Act, 1939, ceases to be in force) for the words "the expiry of six months from the date when the Emergency Powers (Defence) Act, 1939, ceases to be in force" there shall be substituted the words "the expiry of section two of the Emergency Laws (Transitional Provisions) Act, 1946".

This section shall continue in force until the thirty-first day of December, nineteen hundred and forty-seven, and shall then expire.

Extension
of certain
emergency
enactments
relating to
agriculture
and land
drainage.
3 & 4 Geo. 6.
c. 14.
4 & 5 Geo. 6.
c. 50.
6 & 7 Geo. 6.
c. 16.

3.—(1) For the purposes of the Agriculture (Miscellaneous War Provisions) Act, 1940, the Agriculture (Miscellaneous Provisions) Act, 1941, and section fourteen of the Agriculture (Miscellaneous Provisions) Act, 1943, the expressions "war period" and "the war period" shall include the period during which this section is in force after the expiry of the Emergency Powers (Defence) Acts, 1939 to 1945 :

Provided that this subsection shall not affect section twenty of the first-named Act.

(2) In the proviso to subsection (1) of section six of the Agriculture (Miscellaneous Provisions) Act, 1943 (which provides that no land shall be acquired for drainage works under that section unless the contract for the acquisition thereof is made, or the notice to treat is served, while the Emergency Powers

(Defence) Act, 1939, is in force) after the words " the Emergency Powers (Defence) Act, 1939 ", there shall be inserted the words " or section three of the Emergency Laws (Transitional Provisions) Act, 1946 ".

PART I.
—cont.

(3) In subsection (2) of section eight of the Land Drainage 4 & 5 Geo. 6. (Scotland) Act, 1941 (which provides that the powers of the Secretary of State to prepare and settle schemes shall cease on the expiry of the Emergency Powers (Defence) Act, 1939) for the reference to the Emergency Powers (Defence) Act, 1939, there shall be substituted a reference to this section. c. 13.

(4) This section shall continue in force until the thirty-first day of December, nineteen hundred and forty-seven, and shall then expire.

4.—(1) For the purposes of the Fire Services (Emergency Provisions) Act, 1941, the expression " the period of the present emergency " shall include the period during which this section is in force after the expiry of the Emergency Powers (Defence) Acts, 1939 to 1945. Extension of certain emergency enactments relating to Fire Services. 4 & 5 Geo. 6. c. 22.

(2) If the period of the present emergency, as defined for the purposes of the Personal Injuries (Emergency Provisions) Act, 1939, comes to an end while this section is in force, the said period shall, as respects war service injuries (as so defined) sustained by members of the National Fire Service, include the period during which this section is in force after the first-mentioned period has come to an end : c. 82.

Provided that section three of the said Act, except so far as it relates to compensation payable under the Workmen's Compensation Acts, 1925 to 1938, as amended by any subsequent enactment, shall not apply to any such war service injury as aforesaid sustained after the first-mentioned period has come to an end.

(3) This section shall continue in force until the thirty-first day of December, nineteen hundred and forty-seven, and shall then expire.

5.—(1) Section eight of the National Health Insurance, Contributory Pensions and Workmen's Compensation Act, 1941 (which gives power to adapt Insurance Acts and Pensions Acts to conditions arising by reason of the war) shall have effect as if in subsection (4) of that section (which provides for the continuation of the section so long as the Emergency Powers (Defence) Act, 1939, continues in force) for the reference to the Emergency Powers (Defence) Act, 1939, there were substituted a reference to this section. Extension of s. 8 of National Health Insurance, Contributory Pensions and Workmen's Compensation Act, 1941. 4 & 5 Geo. 6 c. 39.

PART I.
—cont.

(2) This section shall not apply to the said section eight as it extends to Northern Ireland by virtue of the National Health Insurance and Contributory Pensions Act (Northern Ireland) 1941, and the Parliament of Northern Ireland shall have power to provide for continuing in force the said section eight as it extends to Northern Ireland.

(3) This section shall continue in force until the thirty-first day of December, nineteen hundred and forty-seven, and shall then expire.

Extension
of Sugar
Industry
Act, 1942.
5 & 6 Geo. 6.
c. 16.

6. In the definition of "war year" in section nine of the Sugar Industry Act, 1942, after the words "the Emergency Powers (Defence) Act, 1939", there shall be inserted the words "or section six of the Emergency Laws (Transitional Provisions) Act, 1946".

This section shall continue in force until the thirty-first day of December, nineteen hundred and forty-seven, and shall then expire.

Extension
of Patents
and Designs
Act, 1942.
5 & 6 Geo. 6.
c. 6.

7 Edw. 7. c. 29.

7. For the purposes of the subsections (1A) and (1B) inserted by section two of the Patents and Designs Act, 1942, in section twenty-nine of the Patents and Designs Act, 1907 (which empower government departments during any war period to make, use, exercise or vend inventions for certain purposes) the expression "war period" shall include the period during which this section is in force after the expiry of the Emergency Powers (Defence) Acts, 1939 to 1945; and, in relation to the exercise of any powers during the period during which this section is in force, the said subsection (1A) shall have effect as if among the purposes specified in that subsection there were included the purposes specified in subsection (1) of section one of the Supplies and Services (Transitional Powers) Act, 1945.

9 & 10 Geo. 6.
c. 10.

This section shall continue in force until the thirty-first day of December, nineteen hundred and forty-seven and shall then expire.

Extension
of Restora-
tion of
Pre-War
Trade
Practices
Act, 1942.

5 & 6 Geo. 6.
c. 9.

8. The Restoration of Pre-War Trade Practices Act, 1942, shall have effect as if in the definition of the expression "war period" (which is defined to end with a date appointed by the Minister of Labour and National Service not later than the date of the expiry of the Emergency Powers (Defence) Act, 1939) for the reference to the Emergency Powers (Defence) Act, 1939, there were substituted a reference to this section.

This section shall continue in force until the thirty-first day of December, nineteen hundred and forty-seven, and shall then expire.

9.—(1) For the purposes of subsection (1) of section one of the Evidence and Powers of Attorney Act, 1940 (which empowers certain officers to administer oaths and take affidavits during any war in which His Majesty is engaged) the war in which His Majesty was engaged at the date of the passing of that Act shall be deemed to continue so long as this section continues in force, and for the purposes of the said Act the expression "war period" shall include the period during which this section is in force after the expiry of the Emergency Powers (Defence) Acts, 1939 to 1945.

PART I.

—cont.

Extension of certain emergency enactments relating to legal powers.
3 & 4 Geo. 6.
c. 28.

(2) In subsection (6) of section one of the Settled Land and Trustee Acts (Courts' General Powers) Act, 1943 (which prohibits the exercise of powers under that section in respect of actions taken or proposed to be taken after the expiration of the Emergency Powers (Defence) Act, 1939) for the reference to the Emergency Powers (Defence) Act, 1939, there shall be substituted a reference to this section.

6 & 7 Geo. 6.
c. 25.

(3) This section shall continue in force until the thirty-first day of December, nineteen hundred and forty-seven, and shall then expire.

10.—(1) For the purposes of the Marriage (Members of His Majesty's Forces) Act, 1941, and the Marriage (Scotland) (Emergency Provisions) Act, 1940, the expression "the war period" and "war period" as defined in the said respective Acts shall include the period during which this section is in force after the expiry of the Emergency Powers (Defence) Acts, 1939 to 1945.

Extension of certain emergency enactments relating to marriage.
4 & 5 Geo. 6.
c. 47.

(2) Section one of the Marriage (Scotland) Act, 1942 (which dispenses in certain cases with the fifteen days' residential qualification for marriage in Scotland, and expires when the Emergency Powers (Defence) Act, 1939, expires) shall continue in force so long as this section continues in force.

3 & 4 Geo. 6.
c. 30.
5 & 6 Geo. 6.
c. 20.

(3) This section shall continue in force until the thirty-first day of December, nineteen hundred and forty-seven, and shall then expire.

11. In subsection (3) of section three of the Guardianship (Refugee Children) Act, 1944 (which prohibits the appointment of guardians and tutors after the expiration of the Emergency Powers (Defence) Act, 1939) for the reference to the Emergency Powers (Defence) Act, 1939, there shall be substituted a reference to this section.

Extension of Guardianship (Refugee Children) Act, 1944.
7 & 8 Geo. 6.
c. 8.

This section shall continue in force until the thirty-first day of December, nineteen hundred and forty-seven, and shall then expire.

PART I.

—cont.

Power of local
authorities
to remove
works and
restore land.

12.—(1) Where any local authority in Great Britain have, in pursuance of powers conferred by any enactment, done work on land for the purpose of protecting persons and property from injury or damage in the event of hostile attack from the air or for any purpose connected with any war in which His Majesty has been engaged since the third day of September, nineteen hundred and thirty-nine, that enactment shall be deemed to confer, and always to have conferred, power—

- (a) to remove any works constructed or other thing placed on, over or below the surface of the land in the course of the work ; and
- (b) for the purpose of restoring the land wholly or partly to the condition in which it was before the work was done, to do such work on the land as the authority thinks fit ;

and any power of entry exercisable by the local authority for the purpose of doing the first-mentioned work on land shall be exercisable for the purpose of removing the works or restoring the land as aforesaid.

8 & 9 Geo. 6.
c. 43.

(2) In this section the expressions “work” and “works” have the same meanings as in the Requisitioned Land and War Works Act, 1945, and the expression “local authority” means, in England and Wales, the council of a county, county borough or county district, the Common Council of the City of London or the council of a metropolitan borough and, in Scotland, means a county, town or district council.

(3) This section shall not affect the provisions of the Requisitioned Land and War Works Act, 1945, with respect to government war work within the meaning of that Act.

(4) This section shall continue in force until the thirty-first day of December, nineteen hundred and forty-seven, and shall then expire.

Power by
Order in
Council to
fix earlier
date for
expiry.

13. Where it appears to His Majesty that any section in this Part of this Act ought to expire on a date earlier than that specified in that section, he may by Order in Council provide that the section shall expire on such earlier date as may be specified in the Order, and the section shall thereupon expire on that date.

Provisions
as to Orders
in Council.

14.—(1) Any Order in Council made under this Part of this Act shall be laid before Parliament as soon as may be after it is made, and if either House of Parliament, within the period of forty days beginning with the day on which any such Order in Council is laid before it, resolves that it be annulled, it shall cease to have effect, but without prejudice to anything previously done thereunder or to the making of any new Order in Council.

In reckoning any period for the purposes of this subsection, no account shall be taken of any time during which Parliament is dissolved or prorogued or during which both Houses are adjourned for more than four days.

PART I.
—cont.

(2) Section one of the Rules Publication Act, 1893, shall not apply to any such Order in Council. 56 & 57 Vict.
c. 66.

PART II.

PERMANENT PROVISIONS.

15. The amendments specified in the Second Schedule to this Act, being amendments of the enactments and laws mentioned in that Schedule made by Defence Regulations therein mentioned, shall have permanent effect. Permanent enactment of amendments made by certain Defence Regulations.

16. Where any goods have been requisitioned in such circumstances as to give a right to compensation assessed under section six of the Compensation (Defence) Act, 1939, or under Regulation fifty B of the Defence (General) Regulations, 1939, the ownership of the goods shall be deemed to have vested in the Crown as from the time of the requisition free from any mortgage, pledge, lien or other similar obligation. Ownership of Crown of requisitioned goods.
2 & 3 Geo. 6.
c. 75.

17. The Essential Buildings and Plant (Repair of War Damage) Act, 1939, the Exchequer and Audit Departments (Temporary Provisions) Act, 1939, and sections one to four of the Allied Powers (War Service) Act, 1942, are hereby repealed. Repeal of certain emergency enactments.
2 & 3 Geo. 6.
c. 74.
2 & 3 Geo. 6.
c. 101.
5 & 6 Geo. 6.
c. 29.

PART III.

SUPPLEMENTARY.

18.—(1) His Majesty may by Order in Council provide, or empower such authority as may be specified in the Order to provide— Provisions as to colonies. etc.

- (a) for the continuation in force, notwithstanding the expiry of the Emergency Powers (Defence) Acts, 1939 to 1945, until the thirty-first day of December, nineteen hundred and forty-seven, of any Defence Regulations having effect in any such country or territory as is specified in section four of the Emergency Powers (Defence) Act, 1939, being Defence Regulations which appear to His Majesty or the said authority to be required for purposes similar to those for which the Defence Regulations specified in the First Schedule to this Act are required or for purposes similar to the purposes of any Act of the Parliament of the United Kingdom passed on or after the first day of September, nineteen hundred and thirty-nine, and in force at the date of the passing of this Act ;

PART III.
—cont.

- (b) that any Defence Regulation so continued in force shall have effect, subject to such exceptions, limitations and modifications as His Majesty or the said authority thinks necessary or expedient ;
- (c) for the revocation in whole or in part of any Regulation so continued and for the making of any saving provisions which His Majesty or the said authority thinks necessary or expedient to take effect on the revocation or expiry of any such Regulation ;
- (d) for the application, in relation to Regulations so continued in force, of the next two following sections of this Act, subject to such exceptions, adaptations and modifications as His Majesty or the said authority thinks necessary or expedient.

(2) Any Order in Council made under this section may be revoked or varied by a subsequent Order in Council.

Continuation
of ss. 3 and 7
of Emergency
Powers
(Defence) Act,
1939.

19.—(1) Section three of the Emergency Powers (Defence) Act, 1939, (which relates to the extra-territorial operation of Defence Regulations) shall, notwithstanding the expiry of the said Act, continue to apply (so far as applicable) to any Defence Regulation continued in force by section one of this Act.

(2) Section seven of the Emergency Powers (Defence) Act, 1939 (which relates to the proof of instruments) shall, notwithstanding the expiry of the said Act, continue to apply in relation to instruments made or issued in pursuance of any provision contained in, or having effect under, any Defence Regulation continued in force by section one of this Act, and documents purporting to be such instruments.

Saving for
Supplies and
Services
(Transitional
Powers) Act,
1945.

20. Where any Regulation continued in force by section one of this Act also has effect by virtue of the Supplies and Services (Transitional Powers) Act, 1945, nothing in the said section one shall affect the operation of that Regulation for the purposes of the Supplies and Services (Transitional Powers) Act, 1945, and nothing in the said Act or done thereunder shall affect the operation of that Regulation under this Act.

Saving for
temporary
amendments.

21. Where any section in Part I of this Act amends any other Act, the expiry of the said section shall not affect the continued operation of that other Act (if it remains in force), in relation to the period for which the said section was in force or anything done or omitted to be done during that period.

Financial
provisions.

22.—(1) There shall be defrayed out of moneys provided by Parliament any expenses incurred by any Minister of the Crown in consequence of the passing of this Act, and any increase attributable to the passing of this Act in any sums authorised or required by any other enactment to be paid out of moneys provided by Parliament.

(2) All sums received after the expiry of the Emergency Powers (Defence) Acts, 1939 to 1945, by way of charges imposed by an order made under the Defence (Services for Industry) Regulations, 1945, shall be paid into such public fund or account as the Treasury may determine.

PART III.
—cont.

23. Nothing in section one of this Act shall restrict the powers of the Parliament of Northern Ireland to make laws with respect to any matter with respect to which that Parliament has power to make laws, and any laws made by that Parliament with respect to any such matters shall have effect notwithstanding anything in any Defence Regulation continued in force by section one of this Act, or in any order or other instrument made under such a Regulation.

Saving for legislative powers of Parliament of Northern Ireland.

24.—(1) This Act may be cited as the Emergency Laws (Transitional Provisions) Act, 1946.

Short title and interpretation.

(2) References in this Act to any enactment shall be construed as references to that enactment as amended by any subsequent enactment.

Section 1.

SCHEDULES.

FIRST SCHEDULE.

DEFENCE REGULATIONS CONTINUED FOR TEMPORARY PERIOD.

PART I.

Defence (General) Regulations, 1939.

<i>Number of Regulation.</i>	<i>Subject matter.</i>	<i>Exception, limitation or modification.</i>
1	False fire alarms	—
2BA	Control of explosives	For the words "the efficient prosecution of the war" there shall be substituted the words "the protection of the public".
12	Protected places	For the words "the efficient prosecution of the war" there shall be substituted the words "the protection of the public".
14	Byelaws as respects certain places and areas.	—
16	Control of highways over or near defence works and protected places.	For the words "the defence of the realm" where they first occur there shall be substituted the words "the protection of the public or the maintenance of supplies and services essential to the life of the community", and the words "for the defence of the realm or the efficient prosecution of the war or to be essential" shall be omitted. Paragraph (1A) shall be omitted. In paragraph (2) for the words "the Commissioners of Works" there shall be substituted the words "the Minister of Works."
18	Entering and leaving United Kingdom.	Paragraphs (3), (3A) and (5) shall be excepted.
18C	Prisoners of war	—
20	Change of name	—
20AB	Amendments of National Registration Act, 1939.	Paragraph (2) shall be excepted.
22	Billeting	All references to the Commissioners of Works shall be omitted.

<i>Number of Regulation.</i>	<i>Subject matter.</i>	<i>Exception, limitation or modification.</i>	1ST SCH. —cont.
22	... Billeting—cont.	At the end of paragraph (1) there shall be inserted the words " Provided that a billeting notice shall not come into force until seven days after the service of the notice unless the occupier of the premises otherwise agrees ".	
23CB	... Amendment of section sixty-seven of the Civil Defence Act, 1939.	—	
23CC	... Amendment of section fifty-four of the Civil Defence Act (Northern Ireland), 1939.	—	
30B	... Information of birth in case where parent has left district owing to war circumstances.	—	
31A	... Provision of food, lodging and medical treatment for persons transferred under evacuation plans.		
31B	... Power to remit charges	—	
32	... Hospitals	In paragraph (6) for the words " the Commissioners of Works " there shall be substituted the words " the Minister of Works ".	
32A	... Transfer of persons of unsound mind and mental defectives.	—	
32AA	... Evacuation of houses licensed under the Lunacy Act, 1890.	—	
32AB	... Power to require nurses, etc., to continue in employment in mental institutions.	No new orders shall be made, and Article 3 of the Mental Nurses (Employment and Offences) Order, 1941, and Article 3 of the Mental Nurses (Employment and Offences) (Scotland) Order, 1943, shall cease to have effect.	
32B	... Temporary registration in medical register of colonial and foreign practitioners.	No new registrations shall be effected.	
32C	... Temporary registration under Pharmacy Acts of foreign pharmacists.	No new registrations shall be effected.	
33	... Exemption of certain women from Acts relating to midwives.	—	

1ST SCH. —cont.	Number of Regulation.	Subject matter.	Exception, limitation or modification.
	33A	... Precautions against diseases associated with infestation of vermin.	For the words "the carrying out of any of the purposes specified in subsection (1) of section one of the Emergency Powers (Defence) Act, 1939", there shall be substituted the words "the public health".
	33B	... Compulsory treatment of venereal disease.	—
	39	... Control of police forces	... For paragraph (1) there shall be substituted the following paragraph— “(1) The Secretary of State may give, with respect to any police force, such general or special instructions providing for the assistance of one police force by another as appear to him to be necessary or expedient in the interests of the public safety or the maintenance of public order”;
			Paragraph (3A) shall be excepted; and in paragraph (5) the words “and for the purposes of this Regulation a special constable appointed under any enactment for any police area shall be treated as if he were a member of the police force for that area” shall be omitted.
	39A	... Seducing persons from duty and causing disaffection.	—
	40AA	... Extension of power to appoint special constables nominated by the Admiralty, Army Council or Air Council.	—
	40AC	... Miscellaneous provisions as to police forces.	—
	41	... Visiting committees for certain prisons.	—
	42B	... Opening on Sundays of cinemas in areas of England or Wales where forces are quartered.	The fact that an order submitted under the Regulation is in force with respect to any borough or county district, or any part thereof, shall not prevent an order for the purposes of subsection (5) of section one of the Sunday Entertainments Act, 1932, with respect to

Number of Regulation.	Subject matter.	Exception, limitation or modification.	1ST SCH. —cont.
42B	... Opening on Sundays of cinemas in areas of England or Wales where forces are quartered— <i>cont.</i>	the borough or district being laid before Parliament in accordance with the provisions of the Schedule to the said Act, and on that order being approved by Parliament the said section one shall extend to the borough or district by virtue of that order and the order submitted under the Regulation shall cease to have effect.	
42C	... Closing of premises, undesirable	Paragraph (1A) shall be excepted and the references to that paragraph or any part thereof shall be omitted.	
42CA	... Unlawful gaming parties	... After paragraph (3) the following paragraph shall be inserted— “(3A) If a justice of the peace is satisfied by infor- mation on oath that there is reasonable ground for suspecting that an offence against this Regulation is being committed at any premises, or if an officer of police of a rank not lower than that of superintendent is satisfied that there is such reasonable ground as aforesaid and that by reason of urgency it is impractic- able to make an application to a justice, the justice or officer as the case may be may issue a warrant in writing authorising any constable named in the warrant, together with any other persons named in the warrant and any other constables, to enter the said premises at any time within forty-eight hours from the time of the issue of the warrant and to search those premises; and any person authorised by the warrant may seize any instrument or other thing found on the premises which is commonly used in connection with the playing of any game and can	

1ST SCH. —cont.	Number of Regulation.	Subject matter.	Exception, limitation or modification.
	42CA ...	Unlawful gaming parties —cont.	properly be adduced in evidence in any proceedings in respect of such an offence, and any constable so authorised may arrest and search any person found on the premises whom he reasonably suspects of having committed such an offence : Provided that no woman shall be searched except by a woman."
			At the end of paragraph (4) there shall be inserted the words " and the court by or before whom any person is so convicted may order any instrument or other thing seized by virtue of a warrant issued under paragraph (3A) of this Regulation to be forthwith destroyed ; " and paragraph (5) shall be excepted.
	45A ...	Issue of identity cards to seamen.	In paragraph (1) for the words " in the interests of the defence of the realm or the efficient prosecution of the war " there shall be substituted the words " in the public interest ".
	50 ...	Power to do work on land ...	In paragraph (1) for the words " the defence of the realm, the prosecution of the war, the securing of the public safety, or the maintenance of supplies and services essential to the life of the community " there shall be substituted the words " the demolition and clearance of property damaged by war operations " and in paragraph (2) for the words " the public safety, the defence of the realm, the efficient prosecution of the war or the maintenance of supplies and services essential to the life of the community " there shall be substituted the words " the demolition and clearance of property damaged by war operations ".

9 & 10 GEO. 6. *Emergency Laws*
(*Transitional Provisions*) Act, 1946.

CH. 26.

<i>Number of Regulation.</i>	<i>Subject matter.</i>	<i>Exception, limitation or modification.</i>	1ST SCH. —cont.
50B ...	Special provisions as to severance of fixtures.	The Regulation shall continue in force only so far as it applies in relation to fixtures severed before the passing of this Act.	
52 ...	Use of land for purposes of H.M. Forces.	—	
55C ...	Restrictions on registration of new clubs.	In sub-paragraph (a) of paragraph (4) after the word "refreshment" there shall be inserted the words "or for cultural or political activities", and sub-paragraph (b) of the said paragraph and the words from "Provided that," to the end of the said paragraph shall be omitted.	
57C ...	Extension of exemption for conveyance of explosives in connection with government contracts.	—	
58AD ...	Restriction on names of organisations for training boys and girls.	—	
59A ...	Payment of wages of certain roadmen by cheque.	For the words "for any of the purposes specified in subsection (1) of section one of the Emergency Powers (Defence) Act, 1939" there shall be substituted the words "in the public interest".	
60AB ...	Temporary amendments of enactments relating to the closing of shops.	—	
60C ...	Amendment of section four of Sale of Food (Weights and Measures) Act, 1926.	Paragraph (1) shall be excepted.	
60CC ...	Power of officers of Post Office to require production of identity cards.	—	
60DA ...	Extension of Police and Firemen (War Service) Act, 1939, to civilian war work.	For the words in paragraph (10) "the period for which the Emergency Powers (Defence) Act, 1939, is in force" there shall be substituted the words "the period for which this Regulation is in force".	
60N ...	Suspension of obligation to prepare Post Office commercial accounts.	—	
76 ...	Handling and conveyance of ammunition, etc., in ports.	—	
79 ...	Collection and disposal of certain articles of military value,	—	

1ST SCH. —cont.	Number of Regulation.	Subject matter.	Exception, limitation or modification.
	81A ...	Commission in connection with government contracts.	—
	82 ...	False documents and false statements.	—
	83 ...	Obstruction	The words "any servant of His Majesty acting in the course of his duty as such, or" and the words "or otherwise discharging any lawful functions in connection with the defence of the realm or the securing of the public safety" shall be omitted.
	84 ...	Restrictions on disclosing information.	—
	85 ...	Entry upon, and inspection of land.	For paragraph (1) there shall be substituted the following paragraph:— "(1) Any person authorised by a competent authority may, on producing, if so required, some duly authenticated document showing his authority, (a) enter on any land for the purpose of exercising any of the powers conferred by or under any of these Regulations; and (b) enter on any land and inspect the land and any article thereon for the purpose of determining whether and, if so, in what manner, any of those powers are to be exercised in relation to the land or that article: Provided that admission to any building or part of a building which is occupied shall not be demanded as of right unless twenty-four hours notice of the intended entry has been served on the occupier, or authority to enter without such notice has been given by the competent authority on the ground of urgent necessity in the public interest and the document of authority contains a statement to that effect."

<i>Number of Regulation.</i>	<i>Subject matter.</i>	<i>Exception, limitation or modification.</i>
86 ...	Removal of offices, etc. ...	The saving for orders made under the Regulation shall continue in force.
87 ...	Permits, licences, &c. ...	Paragraph (1) shall be excepted.
88 ...	Fees for permits, licences, &c.	—
89 ...	Use of force in entering premises.	—
90 ...	Attempts to commit offences and assisting offenders.	—
91 ...	Offences by corporations ...	—
92 ...	Penalties ...	—
93 ...	Legal proceedings ...	In paragraph (2) for the words "any of the offences specified in the Second Schedule to these Regulations" there shall be substituted the words "any offence against these Regulations."
93A ...	Proceedings on indictment in Scotland against bodies corporate.	—
Regulations 95 to 99	Supplementary provisions ...	—
99B	Application of Interpretation Act, 1889, to Defence Regulations, &c.	The reference to the Emergency Powers (Defence) Act, 1939, shall be construed as including a reference to this Act.
Regulations 100 to 105	Interpretation and application	In paragraph (7) of Regulation 100, for the words "as amended by any subsequent Regulations made under the Emergency Powers (Defence) Acts, 1939 and 1940" there shall be substituted the words "as subsequently amended, modified or adapted."
Third Schedule.	Manner of instituting proceedings.	Only those entries shall continue in force under this Act which relate to Regulations which continue in force under this Act.

PART II.

Defence Regulations other than the Defence (General) Regulations, 1939.

Regulations.

Exception, limitation or modification.

The Defence (Administration of Justice) Regulations, 1940.	In paragraph (1) of Regulation 17 the words "or by reason of hostile operations in the United Kingdom" shall be omitted, and in paragraph (2) of Regulation 20 the definition of "hostile operations" shall be omitted.
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1ST SCH.
—cont.

<i>Regulations.</i>	<i>Exception, limitation, or modification.</i>
The Defence (Administration of Justice) (Scotland) Regulations, 1940.	Paragraphs (1) and (3) of Regulation 3 shall be excepted.
The Defence (Agriculture and Fisheries) Regulations, 1939.	Part V shall be excepted. In paragraph (1) of Regulation 28B, the words "the efficient prosecution of the war or," shall be omitted.
The Defence (Agriculture and Fisheries) (Northern Ireland) Regulations, 1940.	—
The Defence (Amalgamation of Police Forces) Regulations, 1942.	The Regulations shall not continue in force as respects Scotland, and no new orders shall be made as respects England and Wales.
The Defence (Armed Forces) Regulations, 1939.	Regulations 11 and 14 shall be excepted.
The Defence (Building Societies) Regulations, 1940.	—
The Defence (Burial, Inquests and Registration of Deaths) Regulations, 1942.	Regulations 2, 3 and 4 shall be excepted.
The Defence (Cinematograph Quotas) Regulations, 1940.	Regulations 4, 6 and 7 shall be excepted.
The Defence (Companies) Regulations, 1940.	—
The Defence (Evacuated Areas) Regulations, 1940.	No new order shall be made under Regulation 3, and Regulation 5 shall be excepted.
The Defence (Functions of Ministers) Regulations, 1941.	—
The Defence (Industrial Assurance) Regulations, 1943.	—
The Defence (National Fire Service) Regulations, 1941.	—
The Defence (Parliamentary Under-Secretaries) Regulations, 1940.	—
The Defence (Patents, Trade Marks, etc.) Regulations, 1941.	In Regulations 3 and 3A the words "or the efficient prosecution of the war" wherever they occur shall be omitted and after the words "in the interests of the defence of the realm" wherever they occur there shall be added the words "or otherwise in the public interest",

*Regulations.**Exception, limitation, or
modification.*1ST SCH.
—*cont.*

The Defence (Patents, Trade
Marks, etc.) Regulations, 1941—
cont.

In paragraph (2) of Regulation 3, after the words "as if the permit had not been granted" there shall be inserted the following proviso—

"Provided that this paragraph shall not apply in any case where—

(a) an application relating to the same invention or design has been made in the United Kingdom not less than four weeks before the application in the foreign country, and

(b) directions have not been given under the foregoing paragraph prohibiting or restricting publication or communication of information with respect to the subject matter of the application in the United Kingdom."

In paragraph (3) of Regulation 3A, sub-paragraph (a) shall be omitted and for the words from the beginning of sub-paragraph (b) to "this Regulation" there shall be substituted the words "transfer any right which existed on the first day of September, nineteen hundred and forty-five, in respect of the use in the United States of America of any invention, discovery or design, and if any person makes any transfer in contravention of this paragraph he shall, without prejudice to the transfer being void, be guilty of an offence against this Regulation."

In paragraph (10) of Regulation 7, after the words "the purposes specified in subsection (1) of section one of the Emergency Powers (Defence) Act, 1939," there shall be inserted the words "or subsection (1) of section one of the Supplies and Services (Transitional Powers) Act, 1945."

1ST SCH.
—cont.

Regulations.

Exception, limitation or
modification.

The Defence (Sale of Food) Regulations, 1943.	In Regulation 2 for the words "for the efficient prosecution of the war" there shall be substituted the words "for the protection of the public".
The Defence (Services for Industry) Regulations, 1945.	—
The Defence (Trading with the Enemy) Regulations, 1940.	—
The Defence (United States Forces — Administration of Estates) Regulations, 1942.	—
The Defence (War Risks Insurance) Regulations, 1940.	—
The Defence (War Risks Insurance) (No. 2) Regulations, 1940.	—
The Defence (War Risks Insurance) (No. 3) Regulations, 1940.	—
The Defence (War Risks Insurance) (No. 4) Regulations, 1940.	—
The Defence (War Risks Insurance) Regulations, 1945.	—
The Defence (Women's Forces) Regulations, 1941.	—

PART III.

Savings.

1. The expiry of Regulation thirty-two AA of the Defence (General) Regulations, 1939, shall not affect the operation of paragraph (7) of the said Regulation, as respects any reception order or other document issued before such expiry, or the operation of paragraph (8) of the said Regulation as respects any period before such expiry.

2. The expiry of Regulation forty AC of the said Regulations shall not affect the operation of paragraphs (2) and (3A) of the said Regulation as respects the grant of any pension, allowance or gratuity in respect of an injury received before such expiry.

3. The expiry of Regulation fifty B of the said Regulations shall not affect the operation of the said Regulation (except so far as it suspends obligations imposed by enactments) as respects the severance of fixtures before the expiry thereof or the requisition of chattels resulting from such severance.

4. The expiry of Regulation sixty DA of the said Regulations shall not affect the operation of the said Regulation as respects any work or service performed or other thing done or omitted to be done before such expiry.

5. The expiry of Regulation 60N of the said Regulations shall not affect the operation of the said Regulation as respects statements of account relating to the previous financial year.

6. The expiry of Regulation sixteen of the Defence (Administration of Justice) Regulations, 1940, shall not affect the operation of the said Regulation as respects any case where a person has been committed for trial before such expiry; and the expiry of Regulations seventeen B, seventeen C, seventeen D and seventeen E of the said Regulations shall not affect the operation of the said Regulations as respects any case where the complaint has been made before such expiry.

7. The expiry of Regulation two of the Defence (Companies) Regulations, 1940, shall not affect the operation of the said Regulation as respects anything done or omitted to be done before such expiry by any such deputy liquidator as is referred to in the Regulation, and the expiry of Regulation seven of the said Regulations shall not affect the operation of the said Regulation seven as respects the destruction or disposal of any transferred deed or share or stock certificate.

8. The expiry of the Defence (Patents, Trade Marks, etc.) Regulations, 1941, shall not affect—

- (a) the operation of paragraph (4) of Regulation three of the said Regulations as respects the communication, publication, making, use, exercise, vending or application of any invention or design before such expiry;
- (b) the operation of Regulation seven of the said Regulations as respects the use of any mark, get-up or description before such expiry; or
- (c) the operation of Regulation eight or eight A of the said Regulations as respects any suspension or reduction of trading activities or of the use of any trade mark, mark, name or form of get-up, before such expiry.

9. The expiry of the Defence (United States Forces—Administration of Estates) Regulations, 1942, shall not affect the operation of the said Regulations as respects the death of any member of the United States Forces occurring before such expiry.

SECOND SCHEDULE.

Section 15.

PERMANENT AMENDMENTS OF ENACTMENTS AND LAWS.

Amendment of the Births and Deaths Registration Act, 1874, made by Regulation 31 of the Defence (General) Regulations, 1939.

At the end of section twenty-five of the Births and Deaths Registration Act, 1874, there shall be added the following paragraph:—

37 & 38 Vict.
c. 88.

"If any superintendent registrar dies, resigns or otherwise ceases to hold his office, and there is no interim superintendent registrar, the clerk of the responsible council as defined by subsection (5) of section twenty-two of the Local Government Act, 1929, shall, if required by the Registrar General so to do, appoint an interim superintendent registrar."

2ND SCH. *Amendment of the Road Traffic Act, 1934, made by Regulation 37A of*
—cont. *the said Regulations.*

24 & 25 Geo. 5.
c. 50. Section thirty-six of the Road Traffic Act, 1934 (which provides that certain traffic signs shall be presumed to comply with statutory requirements unless the contrary is proved) shall apply to all traffic signs and accordingly shall have effect as if the words "(being a sign for regulating by means of light signals the movement of traffic)" were omitted therefrom.

Amendment of the Special Constables Act, 1923, made by Regulation 40AB of the said Regulations.

13 & 14 Geo. 5.
c. 11. Section four of the Special Constables Act, 1923, shall have effect as if the words "of or exceeding the age of eighteen years" were substituted for the words "of or exceeding the age of twenty years".

Amendment of the Merchant Shipping Act, 1894, made by Regulation 47D of the said Regulations.

57 & 58 Vict.
c. 60. The provisions of paragraphs (b) and (c) of subsection (1) of section one hundred and sixty-three of the Merchant Shipping Act, 1894 (which restricts certain dispositions by seamen of their wages) shall not apply to any such disposition in so far as it relates to the application of wages in the payment of contributions to any body to which this provision applies in respect of membership of that body, and the provisions of paragraphs (a) and (d) of that subsection shall not apply to anything done or to be done in giving effect to such a disposition in so far as it relates to the matters aforesaid.

This provision shall apply to any body which appears to the Minister of War Transport to be representative of the interests of, or to provide benefits for, seamen generally (including all persons employed or engaged in any capacity on board any ship) or any class of seamen, and which, on an application made to the Minister in writing by or on behalf of an organisation appearing to him to be representative of shipowners and seamen, is declared by order of the Minister to be a body to which this provision applies.

Any order made under Regulation forty-seven D of the Defence (General) Regulations, 1939, shall have effect as if it had been made under this provision, and any order made under this provision may be varied or revoked by a subsequent order made by the Minister.

Amendments of the Food and Drugs Act, 1938, made by Regulation 60C of the said Regulations.

1 & 2 Geo. 6.
c. 56. Paragraph (c) of subsection (2) of section thirty-three of the Food and Drugs Act, 1938 (which prescribes conditions as to the containers and wrappers of margarine sold by retail) shall have effect as if—

- (a) for the words "in block letters not less than half an inch long" there were substituted the words "in block letters of a type at least as large as any other letters printed on the outside of that wrapper"; and
- (b) the words "and the outside of that wrapper shall bear no other printed matter, except such matter as may be required by or under any enactment" were omitted.

*Amendment of the Road and Rail Traffic Act, 1933, made by Regulation 60MA of the said Regulations.*2ND SCH.
—cont.

Subsection (4) of section sixteen of the Road and Rail Traffic Act, 1933 (which provides for the preservation of certain records kept by the holder of a licence under that Act) shall have effect as if for the words "six months", where they first occur, there were substituted the words "three months".

23 & 24 Geo. 5.
c. 53.*Amendments of enactments relating to land drainage made by Regulation 62C of the said Regulations.*

1. The powers conferred by section thirty-five of the Land Drainage Act, 1930, on drainage boards other than Catchment Boards, shall be exercisable also by Catchment Boards, and accordingly subsection (2) of that section shall have effect with the omission of the words "not being a Catchment Board".

20 & 21 Geo. 5.
c. 44.

2. The functions of a drainage board as respects the doing of any work under any enactment relating to land drainage are not to be treated as in any way limited by the fact that some other person is under an obligation, by reason of tenure, custom, prescription or otherwise, to do that work.

Amendments of the Agricultural Returns Act, 1925, made by Regulation 67 of the said Regulations.

1. For the purposes of the Agricultural Returns Act, 1925, agricultural land shall be deemed to include land used wholly or mainly for the purpose of breeding or keeping poultry.

15 & 16 Geo. 5.
c. 39.

2. Notwithstanding anything in subsection (2) of section one of the Agricultural Returns Act, 1925, any returns made under that Act may be used in any manner which the Minister of Agriculture and Fisheries or the Secretary of State, as the case may be, thinks necessary or expedient in connection with the maintenance of the supply of food in the United Kingdom.

Amendments of the Improvement of Livestock (Licensing of Bulls) Act, 1931, made by Regulation 18 of the Defence (Agriculture and Fisheries) Regulations, 1939.

The Improvement of Livestock (Licensing of Bulls) Act, 1931, shall, in its application to England and Wales, have effect subject to the following amendments—

21 & 22 Geo. 5.
c. 43.

- (a) in subsection (1) of section three the words "and shall send by post to the Minister written notice of the name and address of the new owner" shall be omitted;
- (b) subsections (3) and (4) of section three shall cease to have effect;
- (c) in paragraph (a) of subsection (5) of section three the words "or becomes void" shall be omitted;
- (d) paragraph (a) of subsection (1) of section four and paragraph (b) of subsection (2) of section six shall cease to have effect;
- (e) in paragraph (i) of proviso (a) to subsection (4) of section six the words "or has become void under subsection (4) of section three of this Act" shall be omitted.

2ND SCH.
—cont.*Amendments of the law relating to juries made by Regulation 3 (3) of the Defence (Administration of Justice) (Scotland) Regulations, 1940.*

It shall be competent for the presiding judge at any trial in Scotland on indictment (whether in the High Court of Justiciary or in the sheriff court), where he is satisfied that owing to lack of special jurors or of common jurors it is impossible to empanel a jury containing the respective numbers of such special and common jurors required by any Act, to authorise a common juror to serve on the jury in place of a special juror or vice versa.

*Amendments of the enactments relating to trustee savings banks made by Regulation 6 of the Defence (Savings Banks) Regulations, 1939.*54 & 55 Vict.
c. 21.

1. The National Debt Commissioners may, in the case of any trustee savings bank, authorise the receipt and repayment of deposits in accordance with arrangements approved by the inspection committee established under section two of the Savings Banks Act, 1891; and where any such authority is given, deposits may be received and repaid accordingly, notwithstanding anything in the rules of the bank and in particular notwithstanding anything included therein by virtue of paragraph (2) of section six of the Trustee Savings Banks Act, 1863, or by virtue of the provision in paragraph (9) of that section for the presence of a second party in every transaction when money is paid or received.

26 & 27 Vict.
c. 87.

2. No security shall be required under section eight of the Trustee Savings Banks Act, 1863, in respect of such persons or classes of persons as the National Debt Commissioners may direct.

3. Paragraphs (2) and (3) of section eleven of the Trustee Savings Banks Act, 1863 (which relate to the personal liability of trustees and managers), shall not apply to anything done or omitted to be done in pursuance of any authority or direction given by the National Debt Commissioners as aforesaid.

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and
King's Printer of Acts of Parliament

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(P.4071)